# 24AVCV01300 24AVCV01300

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24AVCV01300 Hearing Date: June 23, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

KAREN MANZUR,

Plaintiff,

v.

FCA US, LLC.: HUNTER DODGE CHRYSLER JEEP RAM FIAT; and DOES 1 through 10, inclusive

Defendants.

Case Number 24AVCV01300

[TENTATIVE] STATEMENT OF DECISION ON DEFENDANT FCA US, LLC’S UNOPPOSED MOTION FOR SUMMARY ADJUDICATION

Date of Hearing:

June 23, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a lemon law action. Plaintiff Karen Manzur ("Plaintiff") leased a vehicle from Hunter Dodge in October of 2018. Plaintiff entered a 3-year warranty contract with Defendant FCA US, LLC ("Defendant") upon purchase of the vehicle. Plaintiff alleges that the vehicle contained a defective engine.

On October 10, 2024, Plaintiff filed a Complaint against Defendant, Hunter Dodge Chrysler Jeep Ram Fiat and Does 1 through 10, inclusive, alleging violations of the Song-Beverly Act, Negligent Repair, and Fraudulent Inducement-Concealment.

On November 12, 2024, Defendant filed an Answer.

On March 23, 2026, Defendant filed the instant Motion for Summary Adjudication.

No Opposition has been filed.

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II. Legal Standard(s)

Standard for Summary Adjudication – The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67 ("Juge"), citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim as framed by the complaint, the party moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code Civ. Proc., § 437c(p)(2); Scalf v. D. B. Log Homes, Inc.(2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

Once the defendant has met that burden, the burden shifts to the opposing party to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

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Request for Judicial Notice – Judicial notice may not be taken of any matter, unless authorized or required by law. (Evid. Code, § 450.) Under Evidence Code section 452, the Court may take judicial notice of the private and official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States; and the records of any court of the United States and of any state of the United States; and it must take judicial notice of those acts and records if a party so requests and provides sufficient notice to the adverse party. (Evid. Code, §§ 452, 453.)

Here, Defendants request judicial notice of Exhibit (B): Plaintiff's Complaint filed on October 10, 2024. The Complaint is a record of the court; thus, the request is granted. (Evid. Code, § 452, subd. (d).)

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III. Discussion

Application – Defendant argues that there is no triable issue of material fact as to Plaintiff's sixth cause of action for Fraudulent Inducement – Concealment as it is undisputed that Defendant did not conceal or suppress a material fact, Defendant did not owe a duty of disclosure to Plaintiff, and Plaintiff did not sustain damages. (Motion, p. 8.) Additionally, Defendant argues that the claim is barred by the 3-year statute of limitations and the economic loss rule. (Ibid)

Fraudulent Inducement – "The elements of fraud," including a cause of action for fraudulent inducement, "are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Hinesley v. Oakshade Town Ctr. (2005) 135 Cal.App.4th 289, 294.)

Concealed Facts –Defendant argues that it is undisputed that the subject vehicle did not contain a defective 3.6L engine. (Memo, p. 11.) Defendant argues that the engine was not defective because Plaintiff took the vehicle for repair on several occasions, but not for a defective engine. (Ibid) Defendant argues that because Plaintiff accuses Defendant of concealing the defective 3.6L engine, and the vehicle did not contain a defective engine Defendant did not conceal a material fact i.e. the defectiveness of the 3.6L engine. (Memo, pp. 11-12.) Further, Defendant submits several Repair Order Reports detailing repairs done to the vehicle and engine. (Documentary Evidence, Exh. F.) The reports show that repairs were performed for concerns of flickering lights, shaking or rattling, and overheating (Documentary Evidence, Exh. G). These repairs do not necessarily relate to a problem with the engine.

Thus, Defendant has met its burden that his has not disclosed a material fact. As there is no opposition, the Court grants not established that they did not conceal a material fact.

Nondisclosure – Defendant argues that they did not owe a duty to disclose to Plaintiff because there was no direct transactional relationship giving rise to a duty to disclose. (Memo, pp. 12-13.)

A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as the plaintiff's fiduciary or is in some other confidential relationship with the plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to the defendant, and the defendant knows those facts are not known or reasonably discoverable by the plaintiff; (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading; or (5) the defendant actively conceals discovery of material fact from the plaintiff. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.)

Circumstances (3), (4), and (5) giving rise to a duty to disclose presuppose a preexisting relationship between the parties, such as "between seller and buyer…or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances." (Rattagan, supra, 17 Cal.5th at pp. 40-41.) "Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large. (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312.)

Here, Plaintiff's claim relies on the warranty contract as a direct dealing between the parties. (Documentary Evidence, Exh. B, ¶¶ 10-11.) But Plaintiff purchased the Vehicle through a third-party, a dealership (Documentary Evidence, Exh. A, p.1)

Thus, Defendant has established that there is no direct transactional relationship giving rise to a duty to disclose. As Plaintiff submits no argument or evidence in opposition, the Court GRANTS the Motion on the issue of a duty to disclose.

Economic Loss Rule – Defendant argues that Plaintiff only seeks damages associated with breach of contract and these damages do not support a tort claim. (Memo, p. 19.) Defendant argues that this bars Plaintiff's claim. (Ibid.)

The Court does not accept that he fraud-in-the-inducement clam is barred by the economic loss rule. Rattagan, Defendant's principal authority, expressly did not address Song-Beverly claims, leaving them for resolution in Dhital v. Nissan North America, Inc. (2022) (Dhital), then pending before the Court. (Rattagan, supra, at p. 41, fn. 12.) The Rattagan court distinguished the claim before it as a claim based on alleged conduct committed during the contractual relationship but purportedly outside the parties' chosen rights and obligations, compared with Song-Beverly claims based on fraudulent inducement by concealment. (Ibid.) Review was subsequently dismissed in Dhital. The Court of Appeal there expressly held that fraudulent inducement by concealment claims are not barred by the economic loss rule. where a plaintiff alleged facts nearly identical to these. (Dhital, supra, at pp. 843-845.) Thus, applying Dhital, the Court finds that the economic loss rule does not as a matter of law foreclose Plaintiff's fraudulent inducement claim.

Accordingly, the Court DENIES the Motion on the issue of the Economic Loss Rule.

Statute of Limitations – Defendant argues that Plaintiff's claim is barred by the applicable 3-year statute of limitations. (Memo, p. 14.) Moreover, Defendant argues that the discovery rule among other exceptions does not apply. (Ibid.)

An action for relief on the grounds of fraud must be brought within 3 years. (Code Civ. Proc., § 338 (d).) If an action is brought more than three years after commission of the fraud, the plaintiff has the burden of pleading and proving that he did not make the discovery until within three years prior to the filing of his complaint. (See Hobart v. Hobart Estate Co. (1945) 26 Cal.2d 412, 437.) "[P]laintiff must affirmatively excuse his failure to discover the fraud within three years after it took place, by establishing facts showing that he was not negligent in failing to make the discovery sooner and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry." (Id.)

Here, the statute of limitations on the cause of action for fraud is three years. The evidence shows that the 3-year warranty began in October 2018 and ran in October 2021. (Documentary Evidence, Exh. B, ¶¶ 10-11; Complaint, Exh. A.) Plaintiff alleges they discovered the defect shortly before the complaint was filed. (Documentary Evidence, Exh. B, ¶ 8.) However, Plaintiff does not detail the method of discovery or explain the inability to discover the defective earlier through reasonable diligence. Thus, the ability to toll the cause of action is not established. Plaintiff alleges fraudulent inducement occurred in October 2018, when Defendant allowed the vehicle to be sold to Plaintiff. (Documentary Evidence, Exh. B, ¶¶ 65-68.) Under the applicable statute of limitations, absent the ability to toll, the cause of action for fraud was barred in October of 2021.

Thus, Defendant has established that Plaintiff's claim is barred by the applicable statute of limitations.

Accordingly, the burden shifts to Plaintiff to establish triable issues of material fact. However, since Plaintiff has not submitted an opposition to Defendant's motion for summary adjudication, Plaintiff has not met HER burden.

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IV. Conclusion

Defendant FCA US LLC's Motion for Summary Adjudication is GRANTED as to the Sixth Cause of Action for Fraudulent Inducement – Concealment.